

HOW TO REQUEST A REPORT OF PROCEEDINGS (TRANSCRIPTS)

NOTE: If there are any words or terms used in these instructions that you do not understand, please visit Illinois Legal Aid Online at ilao.info/glossary. For more information about going to court including how to fill out and file forms, call or text Illinois Court Help at 833-411-1121 or go to ilcourthelp.gov.

More information and resources for civil appeals are available at: ilcourts.info/appl-resources. There is also a Guide for Appeals to the Illinois Appellate Court for Self-Represented Litigants at: ilcourts.info/aoic-appl-guide.

What is a *Request for Report of Proceedings (Transcripts)*?

- The Report of Proceedings (Transcripts) is a typed record of a hearing or trial. It includes what the judge, the parties, the witnesses, and the lawyers said or testified to in court. This typed record is also called a transcript.
- The appellate court must have the Report of Proceedings (Transcripts) to figure out if the trial court's decision is right.
- If you do not file a Report of Proceedings (Transcripts), the appellate court may think that the trial court judge made the right decision.
- If the court proceedings were not recorded, see the instructions for *How to Prepare a Bystander's Report or Agreed Statement of Facts* and related forms at ilcourts.info/forms.

Who can use the *Request for Report of Proceedings (Transcripts)* form?

- The person who files the appeal (the appellant) must make sure the record on appeal is complete.
- A complete record on appeal must include a typed record of what was said or done in court while it was in session. This is called the Report of Proceedings (Transcripts).
- A court reporter may have recorded the hearing or trial, or the court may have made an audio or video recording. If there were multiple hearings, a court reporter may have recorded some of them and the court's audio equipment may have recorded others.

What forms do I need to fill out for the *Request for Report of Proceedings (Transcripts)*?

- You need to fill out the *Request for Report of Proceedings (Transcripts)* if the trial or hearing was recorded.
- The email address (if you have one) and mailing address you put on the *Request for Report of Proceedings (Transcripts)* is where important legal documents will be sent to you. You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss

important information and documents from other parties.

- If the court provided the court reporter, ask the trial court clerk's office how to contact them.
 - If the court made an audio or video recording, ask the trial court clerk's office how to contact the person who will type the Report of Proceedings (Transcripts).
 - In some counties, like Cook County, a private court reporter may have recorded the hearing or trial. If you hired a private court reporter, you can call the court reporter to find out where to deliver your *Request for Report of Proceedings (Transcripts)*. If the other party hired the court reporter, you should contact that party (or their lawyer, if they have one) to get the name and telephone number of the court reporter. Then contact the court reporter to find out where to deliver your *Request for Report of Proceedings (Transcripts)*.
 - Even if the other party hired the court reporter, you must use the *Request for Report of Proceedings (Transcripts)* form to ask the court reporter to type the Transcripts.
 - When you find out who the court reporter was or who will type the Report of Proceedings (Transcripts), you need to deliver the *Request for Report of Proceedings (Transcripts)* to that person.

Where can I find the form I need?

You can find the form at: ilcourts.info/forms.

How much does it cost when I use the *Request for Report of Proceedings (Transcripts)*?

- You don't pay to use this form if you drop off the *Request for Report of Proceedings (Transcripts)* yourself. If you deliver the *Request for Report of Proceedings (Transcripts)* by mail or third-party commercial carrier (e.g., FedEx or UPS), you must pay postage or delivery fees. In either case, you must pay the court reporter for the cost of the transcripts.
- Court reporters will tell you how much the transcripts will cost when you request them. Most court reporters will require you to pay them at least half of the cost of the transcripts when you request them.
- Transcripts can be expensive. However, if you don't file the *Request for Report of Proceedings (Transcripts)*, the appellate court may think that the trial court judge made the right decision and you will lose your appeal.

What if I cannot afford to pay for the Report of Proceedings (Transcripts)?

- If you have already received a fee waiver, it should cover the fees for transcripts that are necessary for your appeal.
- You may need to file a motion in the circuit court to ask the judge to decide which transcripts are necessary for your appeal. You can find the circuit court *Motion* form and instructions at: ilcourts.info/motion-forms.
- The circuit court judge may determine what transcripts, if any, are necessary for your appeal. The fees for preparing necessary transcripts should be waived.

When do I have to deliver the Request for Report of Proceedings (Transcripts)?

- You must deliver the *Request for Report of Proceedings (Transcripts)* to the court reporter as soon as you can. This is because you must attach a copy of the *Request for Report of Proceedings (Transcripts)* to your *Docketing Statement* when you file it. You can find the *Docketing Statement* at ilcourts.info/forms.
- When you deliver the *Request for Report of Proceedings (Transcripts)* to the court reporter who will type the transcripts, have that person sign your *Docketing Statement*. This will show the appellate court that you requested the Report of Proceedings (Transcripts). If you mail the court reporter your *Request for Report of Proceedings (Transcripts)*, attach a copy of your *Request* to the *Docketing Statement* and sign where indicated in Section 10 of the *Docketing Statement*.
- The period for filing the *Docketing Statement* starts on the day after you filed the *Notice of Appeal (Civil)*. You must count weekends and holidays. However, if the due date falls on a weekend or court holiday, you may file the *Docketing Statement* on the next business day.
- In general, you must e-file the *Docketing Statement* within **14 days** after you filed the *Notice of Appeal (Civil)*. However, in some appeals, you must file the *Docketing Statement* sooner. See the *How to Complete the Docketing Statement (Civil)* at ilcourts.info/forms.

How do I fill out the Request for Report of Proceedings (Transcripts)?

You use the *Request for Report of Proceedings (Transcripts)* to ask the court reporter to type the transcripts for each hearing that took place.

Fill out the form online or print it and fill it out by hand. If you fill it out by hand, you must print neatly.

Case Name

- Fill in this section the same way you filled it out on the *Notice of Appeal (Civil)*.

Section 1

- In Section 1a, check the box if a court reporter recorded the trial or hearings. Write the name and address of the court reporter.
- In Section 1b, check the box if the court recorded the trial or hearings with audio or video equipment. Write the name and address of the Administrator of Court Reporters. You can ask the trial court clerk's office for this information.

Section 2

- Write the date, time, and courtroom of each hearing you want the court reporter to type for you. You must give this information for every hearing that is important to your appeal. Attach an *Additional Transcripts* form if you need room to list more hearings.

Section 3

- Write the name, address, email, and phone number of the other party or their lawyer.
- If there are multiple parties or lawyers, use the *Additional Parties or Lawyers* form and attach it to the *Request for Report of Proceedings (Transcripts)*.

Section 4

- At the end of the *Request for Report of Proceedings (Transcripts)*, sign your name and clearly write your name, address, telephone number, and email address.

What do I do after I fill out the form?

- Make copies for all parties.
- Serve the other party, or their lawyer if they have one. If you and the person you're sending the *Request for Report of Proceedings (Transcripts)* to have an email address, you must send it by email or by notification through the e-filing system. If you or the person you're sending the *Request for Report of Proceedings (Transcripts)* to does not have an email address, you may give it to the other person by personal hand delivery, mail, or third-party commercial carrier (for example, FedEx or UPS).
- Deliver the *Request for Report of Proceedings (Transcripts)* to the court reporter. You may deliver the *Request for Report of Proceedings (Transcripts)* by hand, by mail, or by a third-party commercial carrier (e.g., FedEx or UPS).
- After you deliver the *Request* form to the court reporter, you must file a copy of your *Request* with the *Docketing Statement* that you file with the appellate court.